

How to handle illegal interview questions and know your rights as a candidate — Action Checklist

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KNOW YOUR LEGAL RIGHTS

- ☐ **Know Your Legal Rights:** Memorize Title VII of the Civil Rights Act which prohibits employers from asking about your race, color, religion, sex, or national origin during interviews and applies to companies with 15 or more employees.
- ☐ **Know Your Legal Rights:** Study the Americans with Disabilities Act so you understand that interviewers cannot ask about your disability status or medical history before extending a formal job offer to you.
- ☐ **Know Your Legal Rights:** Learn the Age Discrimination in Employment Act which prevents employers from asking your age, graduation year, or using any question that functions as an age proxy during hiring.
- ☐ **Know Your Legal Rights:** Research whether your state has additional employment discrimination laws that extend protections beyond what federal law requires since many states cover smaller employers and younger workers.

HANDLE IT IN THE MOMENT

- ☐ **Handle It In The Moment:** Prepare a calm redirect phrase you can use when an interviewer asks an inappropriate question so you can steer the conversation back to job-relevant qualifications instead.
- ☐ **Handle It In The Moment:** Practice answering the legitimate version of any question disguised as an illegal one by responding to what skills or qualifications you bring rather than personal details about your life.
- ☐ **Handle It In The Moment:** Ask a clarifying question when unsure whether something is legal, turning the question back on the interviewer and giving yourself time to decide how to respond appropriately.
- ☐ **Handle It In The Moment:** Decline to answer clearly illegal questions politely but firmly since you are not legally obligated to answer questions that violate federal employment discrimination laws regardless of how the interviewer frames them.

TAKE ACTION AFTERWARD

- ☐ **Take Action Afterward:** Document the interview immediately while it's fresh by writing down the exact questions asked, the context, and how you responded before your memory of the details fades.
 - ☐ **Take Action Afterward:** File a complaint with the EEOC if you believe you experienced illegal discrimination because the agency investigates claims and can take action against employers who violated federal law.
 - ☐ **Take Action Afterward:** Contact an employment lawyer for a free consultation if you have concrete evidence that illegal interview questions may have cost you the job since lawyers can assess whether you have a viable case.
 - ☐ **Take Action Afterward:** Report the company to your state's fair employment agency since many states have their own employment discrimination enforcement mechanisms that may provide faster or additional remedies.
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